

Multiple Choice (10 marks)

1. Is recognition of governments prevalent in contemporary international practice?
 - (a) Recognition of governments is very prevalent in contemporary practice
 - (b) Recognition of governments has largely been replaced by functional Recognition
 - (c) Government recognition is common in respect of rebel entities
 - (d) Only democratic governments are recognised in contemporary practice
2. Hart's analysis of law distinguishes between
 - (a) Cause and effect
 - (b) Theory and fact
 - (c) Being obliged and having an obligation
 - (d) Corporeal and incorporeal rights
3. The U.S. Congress is empowered by the Commerce Clause and other provisions of the U.S. Constitution to enact _____ to regulate foreign and interstate commerce.
 - (a) ordinances
 - (b) federal statutes
 - (c) executive orders
 - (d) charters
4. Point out the most accurate response : According to Austin, law has the following attributes :
 - (a) Command, sovereign and enforceability
 - (b) Command, sovereign and legal remedy
 - (c) Command, sovereign and sanction
 - (d) Command, sovereign and obedience by subject
5. Which case was the first to define the meaning of the doctrine of 'margin of appreciation' as applied by the European Court of Human Rights?
 - (a) Goodwin v UK (2002)
 - (b) Airey v Ireland (1979)
 - (c) Osman v UK (1998)
 - (d) Handyside v UK (1976)

True / False (10 marks)

Answer True or False

6. True or False: The rule of recognition applies only to unitary constitutions and does not function in federal systems.
7. True or False: The phrase 'Lex iniusta non est lex' implies that law is superior to morality and must be followed regardless of its justice.
8. True or False: Hart's distinction between 'being obliged' and 'having an obligation' illuminates the concept of a rule in legal theory.
9. True or False: The purpose of immunity is to protect foreign Heads of State from embarrassment in diplomatic relations.
10. True or False: The Social Fact Thesis claims that law is essentially an artefact or social construction shaped by society.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss why Hobbes considers peace the first law of nature, particularly in the context of individual rights and the potential for conflict in the absence of peace.
12. Discuss the implications of Maine's aphorism 'the movement of progressive societies has hitherto been a movement from Status to Contract,' and analyze how it is often misinterpreted as a prediction.

End of Paper